JOHNS HOPKINS
BLOOMBERG SCHOOL
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Ethical Issues in Clinical Trials: Informed Consent

Ann-Margret Ervin, PhD, MPH
Johns Hopkins University

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Introduction to Informed Consent

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What Is *Informed Consent?*

- ***Informed consent*** is a social contract involving trial participants, investigators, institutions, and sponsors
- Informed consent is a prerequisite for enrollment in a clinical trial
- Investigators must provide sufficient information about the trial to satisfy ethical and regulatory requirements
- Information must be communicated in a way that allows the participant to make an informed decision regarding enrollment
- Informed consent means that the participant voluntarily confirms their willingness to join the trial

Informed Consent Is a *Process*

- Informed consent is a *process* to inform a prospective participant of all aspects of a trial that are relevant to decision-making
  - Starts at the initial contact by a study team member
  - Continues as a trust-building effort throughout the screening phase
- Documented by signing the consent statement(s)
- Consent is reaffirmed throughout the trial
- May be necessary to have participants read and sign a revised consent form when there are significant changes to the study protocol
- The consent process continues through study completion

Who May Obtain Informed Consent?

- The study investigator must identify qualified study team members to support the informed consent process; study team members should be trained to obtain consent
  - Ensures that they are knowledgeable about the trial
  - Incorporates best practices for communicating information

- The ethics committee or research ethics committee of an institutional review board (IRB) will review qualifications and training for team members who will obtain informed consent

- If team member has a clinical-care relationship, they must explain to the participant that:
  - Trial participation is separate from clinical care
  - The patient's decisions regarding participation will not affect their clinical care

Who May Provide Informed Consent?—1

- Participants or their legal agents must provide informed consent
- Adults (as defined by law) may provide informed consent—unless they lack the capacity to do so
  - If adults lack capacity to provide informed consent, a legally authorized representative may provide consent on their behalf
  - If a trial is likely to include participants who lack capacity, the protocol should include how a lack of capacity will be assessed
  - A participant with limited capacity should provide assent if able
- Some participants are considered vulnerable due to incarceration, immigration status, illiteracy, and pregnancy
  - There are additional protections for vulnerable participants

Who May Provide Informed Consent?—2

- Parents and legal guardians provide parental permission for minors
  - Depending on the risk/benefit profile of the trial, permission may be required from one or both parents/guardians (when appropriate)

- Minors can provide assent based on their capacity to do so
  - Age, maturity, and psychological state are determining factors

- The consent or approval of community leaders is often advised when trials occur in a community or international setting

Consent Document

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Basic Elements of a Consent Document

- Purpose of research
- Reasonably foreseeable risks
- Benefits that may reasonably be expected
- Alternative courses of treatment
- Confidentiality of records
- Compensation for injury
- Contact information
- Voluntary participation, withdrawal
- Use of biospecimen and identifiable data

Clinical Trial Informed Consent Document

- Description of the study arms
  - Including use of placebos and sham procedures
- Randomization and allocation ratio
- Persons masked/blinded during the trial
- How interventions are administered
- Follow-up period, including time points and method of contact
- Indications for discontinuing interventions during the trial
- Descriptions of the examinations, surveys, and telephone contacts
- Availability of interventions for all participants at the end of the trial

Goals for an Informed Consent Document—1

- Objective is to provide information so that a potential participant can make an *informed* decision on participating in a trial
- Use simple words and short sentences
  - If the potential study participant cannot understand the informed consent statement, then they cannot be truly *informed*
- Assess readability, health literacy, usability of consent document
- Translations of the informed consent document should be provided when the target population is anticipated to include non-native speakers
- Avoid creating an over-simplified form that does not convey the information that a potential participant needs to know

Goals for an Informed Consent Document—2

- Think about what you, or one of your family members, would like to know if they were considering joining the trial
- Consider drafting individual consent forms (or assent form for minors) if you have multiple types of participants
- If your trial includes investigational medications or devices, consider including a separate document describing them

Consent Process

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Consent Discussion—1

- Must precede any study-related activities
  - Including screening for eligibility and randomization
- Study team member must be cognizant of anything that might interfere with participant's ability to make an informed decision
- Supplement with written or visual materials about design and purpose of trial (videos, flip charts, other media, recruitment materials)
- The language of the discussion must be *understandable*
  - Consider the language used during the discussion
  - Consider how well the consent language explains the procedures and supplement as needed
- Discussion should be free of coercion and should not impose undue influence over the person's decision to participate

Consent Discussion—2

- Allow sufficient time for the participant to understand information
  - May be appropriate to include an assessment of comprehension
    - Especially if the trial design is complex
- Allow participant the opportunity to ask questions
- Allow time for participant to consult with their physician and family members
- Document and monitor the consent process
- Participants retain the right to withdraw from a trial at any time, and this must be communicated during the consent process
  - Also communicate whether additional follow-up or procedures are required at the time of withdrawal

Re-Consenting Participants—1

- New information that could affect the participant's willingness to continue participation should be communicated

- Investigators must provide an opportunity for re-consenting participants when there are significant modifications to the study protocol
  - Research ethics board will determine when this is required
    - New risks identified
    - Change in study arms
    - New alternative treatment

- Usually, all participants are re-consented unless it is determined that the modifications will not impact currently enrolled (only future participants)

Re-Consenting Participants—2

- Communication methods depend on the type of change, time sensitivity of notification, and status of the trial (recruitment open, recruitment completed)
  - Re-consent with revised consent form or addendum to the original consent form
  - Consider adding a cover page to the consent form to outline the changes
  - Information sheet to inform of changes
  - Verbal communication (documented in study file)